SUPREME COURT OF INDIA

APPELLATE JURISDICTION · CONSTITUTION BENCH (6 JUDGES)

Writ Petition No. 13 of 1950 **CNR: SCIN010000131950**

Date of Pronouncement: 19 May, 1950 *Citation: AIR 1950 SC 27*

CORAM: Hon'ble Harilal Kania, C.J., Saiyid Fazl Ali, M. Patanjali Sastri, Mehr Cha

Petitioner / Appellant: A.K. Gopalan

- VERSUS -

Respondent / State: State of Madras

SUBJECT: PERSONAL LIBERTY & DUE PROCESS **AUTHORITY: Overruled by Supreme Court (Maneka Gandhi)**

JUDICIAL RATIO DECIDENDI & OPERATIVE PRINCIPLES:

'Procedure established by law' in Article 21 means procedure prescribed by the statute, not principles of natural justice. Articles 19 and 21 are mutually exclusive. [OVERRULED by Maneka Gandhi v. Union of India (1978)].

STATUTORY PROVISIONS INTERPRETED: Article 21, Article 19, Article 22, Article 14

FINAL DISPOSITION: PREVENTIVE DETENTION UPHELD (OVERRULED IN 1978)

EXECUTIVE SUMMARY:

Early ruling holding that 'procedure established by law' under Article 21 merely required enacted legislative procedure without examining substantive reasonableness, treating Articles 19 and 21 as mutually exclusive silos. Overruled by Maneka Gandhi (1978).

LEXGUARD CRYPTOGRAPHIC VERIFICATION SEAL · SECTION 65B ADMISSIBLE

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